Anti-Harassment and POSH Complaint Procedure

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Summary. Explains what counts as harassment and sexual harassment at Northstar Systems, how to file a complaint with the Internal Committee, the 3-month filing window, the 90-day inquiry timeline, interim relief, confidentiality, non-retaliation and the outcomes available.

SYNTHETIC DOCUMENT - Northstar Systems is a fictional company. This document exists for development, testing and demonstration only and is not real legal, employment, security or compliance advice.

1. Purpose and Scope

This procedure explains how Northstar Systems Private Limited prevents sexual harassment and other forms of harassment, and how a person can raise a complaint, what the company will do in response, and what protections apply while the complaint is handled. It supports the Code of Conduct and Ethics (HR-008), which sets the standard of behaviour, and works together with the Grievance and Disciplinary Procedure (HR-014), which handles other workplace complaints and the disciplinary steps that follow findings.

The procedure applies to every employee in Bands B1 to B7, and to contractors, consultants, interns, trainees, temporary staff, visitors and customer or vendor personnel when the incident involves a Northstar employee or occurs in a Northstar workplace. A "workplace" is not limited to the Northstar Tower campus in Whitefield, Bengaluru, or the Powai office in Mumbai. It includes customer sites, offsite events, business travel, vehicles arranged by the company, remote working locations, video calls, chat platforms and email, and any place visited in the course of work.

The legal framework referred to in this document, including the Internal Committee structure and the timelines, is illustrative; to be verified by Legal before external use. Where the applicable law gives a person a stronger right than this procedure, the law applies.

2. Our Position

Northstar has zero tolerance for sexual harassment and for harassment based on gender, caste, religion, ethnicity, language, age, disability, marital status, sexual orientation or gender identity. Every employee has the right to work free from harassment. Every complaint is taken seriously, handled promptly and fairly, and kept confidential. No one will suffer retaliation for making a complaint in good faith or for helping with an inquiry.

3. Definitions

- **Sexual harassment**: any unwelcome act or behaviour of a sexual nature, whether direct or by implication. This includes physical contact and advances, a demand or request for sexual favours, sexually coloured remarks, showing pornography or sexual images, and any other unwelcome physical, verbal, written, online or non-verbal conduct of a sexual nature.
- **Circumstances that amount to harassment**: an implied or explicit promise of preferential treatment, an implied or explicit threat of detrimental treatment, an implied or explicit threat about present or future employment status, interference with work or creation of an intimidating, hostile or offensive environment, or humiliating treatment likely to affect health or safety.
- **General harassment and bullying**: unwelcome conduct that is not of a sexual nature but demeans, intimidates or isolates a person, such as repeated humiliation, abusive language, deliberate exclusion, or discriminatory jokes. This is handled under HR-014 as a grievance or a conduct matter, not by the Internal Committee, unless it is connected with a sexual harassment complaint.
- **Aggrieved person**: the person who says they have been subjected to harassment. The term covers all genders.
- **Respondent**: the person against whom the complaint is made.
- **Internal Committee (IC)**: the committee constituted by Northstar to receive and inquire into complaints of sexual harassment.
- **Presiding Officer**: the senior woman employee who chairs the IC.
- **Complaint**: a written statement of the incident or incidents made to the IC.
- **Interim relief**: temporary measures taken during the inquiry to protect the aggrieved person.

4. Examples of Prohibited Conduct

The following behaviours are examples only; the list is not complete.

- Unwanted touching, hugging, blocking a person's path or standing too close.
- Repeated invitations after a person has declined, or messages after working hours of a personal or romantic nature that are unwelcome.
- Comments on a person's body, clothes or relationship status that are sexual or offensive.
- Sharing or displaying sexually explicit content on a screen, in a chat group or through any device.
- Making work decisions such as ratings, assignments, projects or promotions conditional on a personal or sexual favour.
- Staring, gesturing or following in an unwelcome manner.
- Online conduct, such as inappropriate remarks during video calls, comments on an employee's home background, or unsolicited sexual messages on messaging tools, social media or email.

Behaviour may be unwelcome even if the person did not object at the time. Silence or going along with a situation is not consent. The intention of the person doing the act does not decide whether it is harassment; the effect and the reasonable viewpoint of the aggrieved person are important.

5. Roles and Responsibilities

Role	Responsibility
Every employee	Behave respectfully, support colleagues, co-operate with any inquiry, keep information confidential

Role	Responsibility
Managers	Act on any behaviour they witness or are told about, refer matters to the IC or HR within 2 working days, protect the aggrieved person from retaliation
Internal Committee	Receives complaints, conducts inquiries, writes findings and recommendations
Presiding Officer	Chairs the IC and signs the report
Employee Relations Manager	Provides administrative support to the IC, holds the confidential records, tracks timelines
HR Business Partner	Helps arrange interim relief and implement recommendations
Chief People Officer	Approves implementation of recommended action for Band B5 and below and decides appeals; General Counsel is consulted on legal aspects
General Counsel	Advises the IC on legal steps and approves external reporting

6. The Internal Committee

6.1 Composition

The IC has at least four members appointed by the Chief People Officer. The Presiding Officer is a senior woman employee. At least two other members are employees who are committed to the cause of women or who have experience in social work or legal knowledge. One member is an external member from a non-governmental organisation or an association committed to the cause of women, or a person familiar with the issues relating to sexual harassment. At least half of the members are women. The members, and their names and contact details, are published on the intranet and on notice boards at every office.

6.2 Term and independence

IC members serve for a term of up to three years and are given training in handling complaints, interviewing and confidentiality. A member who has a personal relationship with, or a reporting relationship to, a party to a complaint must step aside for that complaint and the Presiding Officer will arrange a replacement. The IC reports to the Chief People Officer but takes its decisions independently. No manager or executive may direct the outcome of an inquiry.

6.3 Separate committees

Northstar maintains an IC for the Bengaluru location and one for the Mumbai location. Remote employees may approach either committee; the Employee Relations Manager assigns the case based on convenience and independence. A complaint about a member of the senior leadership team, including the CEO or an executive, is inquired into by the IC with external legal support arranged by the General Counsel.

7. How to Make a Complaint

7.1 Time limit

A complaint should be made within 3 months of the date of the incident or, where there is a series of incidents, within 3 months of the last incident. The IC may extend this time by a further 3 months, to a total of 6 months, if it is satisfied that circumstances prevented the aggrieved person from complaining within the period, for example illness, trauma, fear of consequences or being away on long leave. The IC records its reasons for extending the period.

7.2 How to file

A complaint should be made in writing to the IC, using any of these channels:

1 By email to the IC address published on the intranet.
2 By handing a written complaint to the Presiding Officer or any IC member.
3 By delivering a written complaint to the HR Helpdesk, which must pass it to the Presiding Officer without opening discussions on the facts.
4 Through a sealed envelope marked Confidential to the Employee Relations Manager.

The complaint should include the aggrieved person's name and contact details, the name of the respondent, the date, time and place of each incident, a description of what happened, the names of any witnesses and any supporting material such as messages, emails, call records or screenshots. Six copies of the complaint and documents may be requested by the IC for the inquiry, and the Employee Relations Manager will help with copying.

7.3 When the aggrieved person cannot write

If the aggrieved person cannot make a complaint in writing, the Presiding Officer or any member of the IC must give all reasonable assistance to put it in writing. If the aggrieved person is unable to complain because of a physical or mental incapacity or death, a legal heir or another person who knows the facts may do so with the written consent of the IC.

7.4 Who else may help

A manager or HR representative who is told about an incident must not decide it informally. They must tell the aggrieved person about the option of making a written complaint to the IC and, with the person's consent, pass on the information within 2 working days. Where there is a risk to anyone's safety, they may inform the Security Desk at once (ext. 5555). The aggrieved person may also contact the 24x7 Employee Assistance Programme (EAP) helpline for counselling, which offers 3 free sessions per issue.

8. What Happens After a Complaint

8.1 Acknowledgement

The IC must acknowledge a complaint in writing within 3 working days of receipt and explain the next steps, the role of the IC and the confidentiality rules.

8.2 Conciliation

At the written request of the aggrieved person, the IC may, before starting an inquiry, take steps to settle the matter through conciliation. No monetary settlement may be made as the basis of conciliation. If a settlement is reached, the IC records it, sends it to the Chief People Officer for implementation and gives copies to both parties. Once a settlement is reached, no further inquiry is held on that complaint. If the respondent breaches the settlement, the aggrieved person may ask the IC to proceed with an inquiry.

8.3 Interim relief

At the written request of the aggrieved person, and at any time during the inquiry, the IC may recommend interim measures. They may include:

- Transferring the aggrieved person or the respondent to a different team, reporting line or location, based on the aggrieved person's choice where possible.

- Granting the aggrieved person leave of up to 3 months in addition to normal leave entitlement, without affecting pay or balances.
- Restricting the respondent's contact with the aggrieved person, including in chat groups and meetings.
- Moving the respondent's reporting duties so that the respondent does not rate, supervise or assign work to the aggrieved person.
- Arranging EAP support and safe transport arrangements.

Interim relief does not mean the respondent has been found guilty. It must not penalise the aggrieved person; where a transfer is considered, the aggrieved person's consent is sought.

8.4 Notice to the respondent

Within 7 working days of the complaint, the IC sends a copy of the complaint to the respondent and asks for a written reply within 10 working days. The respondent is told that the inquiry is confidential and that retaliation is a separate serious breach.

9. The Inquiry

9.1 Principles

The IC follows principles of natural justice. Both parties have the right to be heard, to present evidence and witnesses, and to be told of the evidence against them. The IC must be fair, impartial and sensitive. Questions that are intimidating, demeaning or about a person's character or past relationships, unless relevant, are not allowed.

9.2 Steps

1 The IC reviews the complaint and reply and decides what further information it needs.
2 The IC interviews the aggrieved person, the respondent and witnesses separately. Each person may be accompanied by a colleague who is not a lawyer during the discussion if they ask, although the companion may not speak on their behalf.
3 The IC collects documents and digital evidence. Where logs of messages, badge records or call data are needed, the IC asks the Employee Relations Manager to request them from IT and Security under the Logging, Monitoring and Audit Policy, with General Counsel approval.
4 The IC keeps written minutes of each interview, which the person interviewed reads and signs.
5 The IC discusses the evidence in private and records its findings.

9.3 Timeline

The inquiry must be completed within 90 days of the date of the complaint. The IC must give its written report with findings and recommendations to the Chief People Officer within 10 working days of completing the inquiry, and both parties must receive a copy of the findings. The Employee Relations Manager tracks the timeline and reports to the Chief People Officer if any case is at risk of exceeding 90 days. Where an extension beyond 90 days is unavoidable, for example because a witness is unavailable, the Presiding Officer records the reason and informs both parties in writing.

9.4 Standard of proof

The IC decides on the balance of probabilities: whether it is more likely than not that the alleged conduct occurred. Lack of eyewitnesses does not prevent a finding if the evidence as a whole is persuasive.

9.5 Complaints that are not upheld

If the allegation is not proven, no action is taken against the respondent. A complaint that is found to be not proven is not automatically a false complaint. Action against an aggrieved person is only taken where the IC concludes that the complaint was made with malicious intent or that false evidence was knowingly produced, and this must be established through the same fair process. A complaint that is not proven because of lack of evidence will not lead to any action against the person who made it.

10. Outcomes and Action

If the IC finds the allegation proved, it recommends action to the Chief People Officer, who must implement it within 60 days of receiving the report. Actions follow the disciplinary ladder in HR-014 and may include:

- A written warning, final written warning or termination of employment, depending on the seriousness.
- Withholding of promotion, salary revision or variable pay for a period.
- Mandatory counselling or training.
- Written apology.
- Where the respondent is a contractor or vendor representative, a recommendation to end the engagement or to bar the person from Northstar premises.
- Payment to the aggrieved person of compensation by deduction from the respondent's salary where the IC decides it is appropriate and permitted by law; the amount is determined with reference to mental trauma, loss of career opportunity, medical expenses and the respondent's means.

The respondent may be given an opportunity to make a written response to the proposed action within 3 working days, in line with the show-cause process in HR-014. The final decision rests with the Chief People Officer, with advice from the General Counsel.

Example: In Bengaluru, a Band B3 engineer files a complaint in the 3rd month after a series of unwelcome late-night messages from a Band B5 team lead. The IC acknowledges the complaint in 2 working days, sends it to the respondent on day 6, and at the engineer's request recommends that the lead no longer supervise or rate the engineer. The inquiry finishes on day 78 and the IC finds the allegation proved. The IC recommends a final written warning and a bar on promotion for the next cycle; the Chief People Officer implements the decision within 60 days.

11. Appeal

Either party who is not satisfied with the outcome may appeal to the Chief People Officer within 7 calendar days of receiving the decision in a disciplinary matter, as set out in HR-014. The statutory appeal rights available to an aggrieved person under applicable law are not reduced by this procedure and the Employee Relations Manager will explain them on request. An appeal does not stop interim protection from remaining in place.

12. Confidentiality

The identity of the aggrieved person, the respondent and witnesses, the contents of the complaint, the inquiry proceedings, the recommendations and the action taken must not be published, communicated or made known to the public, press or any employee other than those who need to know. A breach of confidentiality by an IC member, a manager or an employee is a serious breach

of the Code of Conduct and Ethics and may result in disciplinary action, including termination. Complaint records are stored in a restricted folder with access only for IC members and the Employee Relations Manager and retained as employee records, in line with the 7-year retention rule for records after exit.

Information that may be shared, without names, is statistical: the number of complaints received and disposed of each year, which is included in the company's annual report on this subject and in training material.

13. Protection from Retaliation

Retaliation against an aggrieved person, a respondent who co-operates, a witness or any person who supports the inquiry is prohibited. Retaliation includes dismissal, demotion, adverse rating, withholding pay or benefits, unfair transfer, threats, social exclusion, spreading rumours or pressuring a person to withdraw. A complaint of retaliation is treated as a new matter and is inquired into with priority by the IC. A person found to have retaliated is liable to action up to and including termination.

For 12 months after the closing of a complaint, the Employee Relations Manager and the HR Business Partner will check in with the aggrieved person at least once every quarter to ask whether they have faced any retaliation, and will record the check in a confidential note. Ratings and pay decisions about the aggrieved person in this period are reviewed by the second-level manager and HR before release.

14. Awareness and Training

All employees must complete the mandatory POSH awareness module in NorthLearn within 30 days of joining and every year after that. Managers complete an additional module on handling disclosures. IC members attend specialist training at least once a year. The company holds awareness sessions at least twice a year for each office and displays the IC contact details, the summary of this procedure and the complaint process prominently. The company submits an annual report on the number of cases to the relevant authority as required by law; this is illustrative and to be verified by Legal.

15. Frequently Asked Questions

What if the incident was more than three months ago? Complaints should be filed within 3 months, but the IC may extend by a further 3 months for good reason. After that, speak to the Employee Relations Manager, who can advise about other options, including a grievance under HR-014.

Will my manager be told? The IC informs only those who need to know. If interim relief such as a change of reporting line is needed, the manager is told what is needed without being given details of the complaint.

Can I withdraw my complaint? Yes, but the IC may continue if there is a risk to others. The IC will check that the withdrawal is voluntary and not the result of pressure.

The respondent is a customer's employee. What can Northstar do? The IC can still inquire as far as the facts allow, and the company may restrict the person's access, raise the matter with the customer through the Director of Customer Success and the General Counsel, and ensure the

aggrieved person is not asked to work with that person.

Does it matter if the conduct was online? No. Conduct on video calls, chats and email is covered in the same way as conduct in the office.

16. Related Documents

Read this procedure with the Code of Conduct and Ethics (HR-008), which sets general standards and the non-retaliation rule, and with the Grievance and Disciplinary Procedure (HR-014), which sets the grievance levels (reporting manager within 5 working days, HR Business Partner within 10 working days, Grievance Committee within 15 working days), the disciplinary ladder of verbal warning, written warning, final written warning and termination, the 3 working day show-cause reply period and the appeal to the Chief People Officer within 7 calendar days.

17. Revision History

Version	Date	Change
3.2	2024-12-09	Added online conduct examples and interim relief detail
3.3	2025-05-12	Added quarterly retaliation check-ins after closure
4.0	2025-12-26	Reorganised procedure, aligned with HR-008 and HR-014